

Letter of Termination

Date: May 24th, 2024

To: Kraig Stickel

From: Technijian Inc.

Subject: Termination of Employment

Dear Kraig Stickel,

We regret to inform you that your employment with Technijian Inc. is terminated effective March 24th, 2024.

You will receive your final paycheck on May 23rd, 2024, including your accrued but unused vacation pay. You will also receive a letter with information about your rights and obligations regarding continuing your health insurance coverage under COBRA.

Please return any company property, such as keys, ID cards, equipment, or documents, to your supervisor or HR representative by May 24th, 2024. You will also need to sign a separation agreement and a release of claims, which will be sent to you shortly.

We appreciate your contributions to Technijian Inc. and wish you the best in your future endeavors. If you have any questions, please get in touch with Shaundra Reahle at 949-379-8499 or sreahle@technijian.com.

Sincerely,



Ravi Jain

CEO



**Technijian
Operations**
18 Technology Dr 141
Irvine, CA 92618

JP Morgan Chase Bank, N.A.
90-7162/3222

1138

5/23/2024

PAY TO THE ORDER OF Kraig Stickel

\$ **3,092.49

Three Thousand Ninety-Two and 49/100*****

DOLLARS

MEMO

Final Paycheck through 05/24/2024 -



AUTHORIZED SIGNATURE

HEAT SENSITIVE
MP

⑈001138⑈ ⑆322271627⑆

791013375⑈

Technijian Operations
Kraig Stickel

5/23/2024

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Chase-Operations (33 Final Paycheck through 05/24/2024 -

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Technijian Operations
Kraig Stickel

5/23/2024

1138

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Chase-Operations (33 Final Paycheck through 05/24/2024 -

3,092.49



104621



Imputed Income & In House Payment Direction

Client Name: Technijian

Authorized Contact (Print Name): Ravi Jain

To direct Sequoia One PEO, LLC ("Sequoia") to process imputed income (for payroll purposes) with respect to a non-cash transaction (including but not limited to fringe benefits like gift cards) or an approved manual payment made outside of the Sequoia system (such as a manual check for the final wages due to a terminated employee), please complete this form and provide a spreadsheet with a list of impacted employees, imputed income/in house payment amounts and any other applicable information, depending on the type of imputed income transaction.

It is important that you return this form on (or before) the effective date of the taxable event in order to avoid late penalties described below.

By signing below, you understand, acknowledge and agree that:

- (1) You and your company are solely responsible for providing Sequoia with timely, accurate and complete information related to imputed income transactions, and Sequoia has no responsibility to confirm or verify the accuracy of such information, nor any liability related to information that is not accurate, complete or timely provided;**
- (2) You and your company are solely responsible for collecting any required withholdings from an employee with respect to an imputed income transaction after consulting with your own legal and/or tax advisors on the permissible methods for doing so (e.g., authorized after-tax deductions from regular or other cash compensation payments, direct payments by check or otherwise from employees, etc.), and your company will be invoiced and required to pay an amount equal to all required withholdings and other payroll tax obligations, the payment of which may be required before Sequoia processes the requested transaction and will not in any way limit Sequoia's indemnification rights under your Client Service Agreement;**
- (3) Sequoia does not provide legal or tax advice to you or your company, so you have consulted with your own legal and/or tax advisors prior to submitting this form;**
- (4) The "Effective Date of Imputed Income" provided below is the date that will be used for purposes of Sequoia's next day deposit obligations with respect to any**



imputed income transaction that triggers payroll tax and/or withholding obligations; and

- (5) If the "Effective Date of Imputed Income" provided below is more than one business day before the date this form is received and accepted by Sequoia, and falls within the current quarter, your company will be invoiced and required to pay an amount equal to \$100 plus 15% of the federal tax liability associated with the imputed income (20% if your company participates in Sequoia's multiple employer 401(k) plan and the imputed income is for an approved manual payment made outside of the Sequoia system) to cover administrative costs and estimated penalties, interest and other costs for exceeding Sequoia's deposit obligation deadlines.

If the "Effective Date of Imputed Income" provided below falls within a previous quarter or tax year, your company will be assessed and invoiced for amendment fees based on the number of employees, quarters, and year end filings; and, if your company participates in Sequoia's multiple employer 401(k) plan and the imputed income is for an approved manual payment made outside of the Sequoia system, you will be invoiced and required to pay an amount equal to \$100 plus 5% of the federal tax liability associated with the imputed income to cover administrative costs and estimated penalties, interest and other costs for exceeding Sequoia's deposit obligation deadlines.

The payment of any amounts provided under this section (5) may be required before Sequoia processes the requested transaction and will not in any way limit Sequoia's indemnification rights under your Client Service Agreement and, if applicable, your Agreement for Participation in the Sequoia One 401(k) Plan.

If you are completing this form for multiple employees, please either list the details below or attach a spreadsheet with the employee names, amounts paid, and effective date of each payment.

Effective Date of Imputed Income or In-House Payment: 05/24/2024

Authorized Contact (Signature): 

Today's Date: 05/22/2024

Check here if using net-calcs provided by Sequoia for an in-house payment: ☒

Other Specific Directions or Information:

Disciplinary Action Notice

Tuesday, May 14, 2024
Kraig Stickel

Ravi Jain – CEO

Employer Statement of Incident

The series of incidents started with RFMD in 2023. Created a single file virtual server with a 10TB thick disk, which caused the backups to take so long that they were stopped before completion. Kraig did not delete the orphaned snapshots and did not notify anyone that the client's central file server had no backups for over a month. The orphaned snapshots caused the disk to get corrupted and then fail to boot, causing the client to lose data. We lost the client shortly after that, primarily because of this issue.

CDC complained about failure to communicate on open tickets and that some took months to complete. Kraig failed to notify me of any issues, and the client asked for another tech to be assigned to the client.

MKC stated they needed a backup restored, and Kraig failed to mention that he did not know of any backups, and then I had to find the backups for the client to use. The client terminated services shortly after that because of this issue.

Prior Warning(s) Related to this Incident

Kraig was warned about the RFMD issue and that backups are a priority for all clients. He failed to recognize this for MKC, and we lost both clients.

Company Policy Related to this Incident

Tech caused the company's reputation to suffer, and it has lost revenue through the loss of two clients, which was approximately \$144,000 in annual revenue.

Summary of Performance Expectations

The employee needs to improve communication with clients and the team when issues arise.

Consequences of Failure to Improve Performance or Correct Behavior

Failure to improve performance will cause termination of employment.

Employee Statement and Acknowledgment

By signing below, I acknowledge I have been given time to review this form completely. I have also been able to attach a written statement confirming the report or providing additional details.

Employee signature: _____

Name and date: _____

Manager or HR representative signature: _____

Name and date: Ravi Jain
5/21/24

RE: Disciplinary Action Notice

Kraig Stickel <kstickel@technijian.com>

Tue 2024-05-21 11:33 AM

To: Ravi Jain <RJain@technijian.com>



Internal (kstickel@technijian.com)



myCleanMail

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Sure, I would like all of what I documented via email/text added as well as the section clarified in terms of company policy. While backups are likely best practice, I know of no policy violation at the time, as the policy is now being updated due to this incident. Also, if this has been policy, please clarify why this client was transferred to me from you without them utilizing our backups. Had this been our company's policy, this would have been a matter for new client sign on, yet I am being asked to assume accountability for this oversight. Also, you have given me your writeup. My signature is not needed.

Thank you,

Kraig Stickel

Client Support Engineer

Technijian – USA

18 Technology Dr. Ste. 141

Irvine, CA 92618

[Book time with Kraig Stickel](#)

T: (949)379-8499 x203

C: (714) 403-7015

F: (949)648-7456

T: (949)379-8501 (*support line*)



Please consider your environmental responsibility. Before printing this e-mail message, ask yourself whether you really need a hard copy.

From: Ravi Jain <RJain@technijian.com>

Sent: Tuesday, May 21, 2024 10:24 AM

To: Kraig Stickel <kstickel@technijian.com>

Subject: Re: Disciplinary Action Notice

Send that to me asap so that i can add that if that allows you to sign it please. I need this signed today

Thanks,



Ravi Jain CISSP

Technijian – USA

Chief Executive Officer

18 Technology Dr. Ste. 141

Irvine, CA 92618

[Book time with Ravi Jain: General Meeting](#)

T: 949.379.8499 x201

F: 949.502.0069

C: 714.402.3164

T: 949.379.8501 (support line)



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From: Kraig Stickel <kstickel@technijian.com>

Sent: Tuesday, May 21, 2024 6:13 AM

To: Ravi Jain <RJain@technijian.com>

Subject: Re: Disciplinary Action Notice

Ravi, I informed of the areas I believe I need to improve upon and of the steps I am taking to do so. I expressed my intention to continue working for Technijian. I take full accountability for any mistakes I have made. I do not accept full accountability for clients who choose to leave

Technijian, especially given the factors I have stated as well as a multitude of others. I expressed my concerns with the Docusign and of my reasons for not signing.
Sincerely,
Kraig

Get [Outlook for iOS](#)

From: Ravi Jain <RJain@technijian.com>
Sent: Tuesday, May 21, 2024 12:27:31 AM
To: Kraig Stickel <kstickel@technijian.com>
Subject: Re: Disciplinary Action Notice

Also cdc told me specifically they did not want support from you because of lack of communication. They said to me in person david and sunny were fine.

But like I said you need to own your issues which you repeated email shows me as less possible.

If you cannot own what you did then most likely you will need to find employment elsewhere..

The writeup is meant as your last warning.

[Book time with Ravi Jain: General Meeting](#)

Thank you,

Ravi Jain

From: Ravi Jain <RJain@technijian.com>
Sent: Tuesday, May 21, 2024 12:13:10 AM
To: Kraig Stickel <kstickel@technijian.com>
Subject: Re: Disciplinary Action Notice

Kraig

I still need you to sign that writeup. Also none of what you said gives me confidence you understand the issues you caused.

Hopefully you will and not repeat those mistakes.

I

[Book time with Ravi Jain: General Meeting](#)

Thank you,

Ravi Jain

From: Kraig Stickel <kstickel@technijian.com>
Sent: Monday, May 20, 2024 11:08:19 PM
To: Ravi Jain <RJain@technijian.com>
Subject: Re: Disciplinary Action Notice

Ravi,

I would like to take this opportunity to express my concerns. Here are a few of them.

Although TCAG must have had reasons for switching IT companies, I understand this is a separate matter and only mentioned it due to concerns of the financial situation of losing a significant client.

Regarding MKC, I was not aware, nor was anyone else at Technijian, of their backup configurations, yet I am willing to take ownership of this issue because this was one of my many clients, even though they were inherited by me prior to the new policy that all clients must have our back up services.

As far as RFMD backup, it was expressed that I had not notified anyone. This is not the case as the India team was aware and they were actively troubleshooting at my instruction. As the DC is his responsibility, Hamid was also aware and knew the India team was working to resolve this issue. At that time, I believed I was handling the matter and that it was under control. Clearly, I was wrong and yes, this did drag on longer than it probably should have and communication should have been given to you. Any future such matters will be brought to your attention. I also acknowledge I have had some lack of communication with clients and am working towards improving and already improving in this area. And at your suggestion, I am actively entering information into Teams to keep our entire team in the loop.

I am genuinely surprised to hear that MKC's primary reason for canceling services with Technijian was that I was unaware of how their backups were configured. I made no mention of this to them and was out of office for the majority of the communication regarding restoring their backups. If this was the primary reason given, I am questioning the validity of this reason, as their notice came precisely two weeks after such incident, which is a fast transition to finding a new company with which to work, given an appearance that they were looking elsewhere prior. If they had good rapport with our company, it seems they would have brought their concerns to our attention and simply requested another technician as they have done so in the past.

This is not meant at all to reflect negatively on David, but you are referring to an employee that has been with the company for only 3 months as opposed to my 2+ years. And during his brief employment, CDC informed they would prefer me service them as opposed to David. Although it was not communicated to me as to any specific concerns with him, I obliged, as this was the client's preference. Despite their preference, I do not have any ill thoughts or concerns towards any of our team members and can cohesively work with any of them.

I am taking accountability for any of my mistakes or errors in judgement. I have acknowledged that I made some mistakes, and am actively working on resolving these issues. That being said, I enjoy working at Technijian and with our team and feel I contribute significantly to our team as a whole.

Thank you

Kraig Stickle

Client Support Engineer

Technijian – USA

18 Technology Dr. Ste. 141

Irvine, CA 92618

[Book time with Kraig Stickel](#)

T: (949)379-8499 x203

C: (714) 403-7015

F: (949)648-7456

T: (949)379-8501 (*support line*)



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From: Kraig Stickel
Sent: Monday, May 20, 2024 9:59 AM
To: Ravi Jain <rjain@Technijian.com>
Subject: RE: Disciplinary Action Notice

Email received, thank you. I will review and respond today.

Kraig Stickel
Client Support Engineer
Technijian – USA
18 Technology Dr. Ste. 141
Irvine, CA 92618
[Book time with Kraig Stickel](#)
T: (949)379-8499 x203
C: (714) 403-7015
F: (949)648-7456
T: (949)379-8501 (*support line*)



Please consider your environmental responsibility. Before printing this e-mail message, ask yourself whether you really need a hard copy.

From: Ravi Jain <RJain@technijian.com>
Sent: Monday, May 20, 2024 9:09 AM
To: Kraig Stickel <kstickel@technijian.com>
Subject: Re: Disciplinary Action Notice

Kraig

The issue with TCAG has nothing to do with us. In fact, both Nathan and Elvia said our work was exemplary. In both RFMD and MKC, you did not communicate about the lack of backups. For RFMD, I have to give \$8000 credit and then lose the client because of that issue, as that was the only issue they pointed to.

For MKC, you didn't even know they had backups, and that was what the owner told me was the issue. The also commented about your support like CDC did.

So, there are three situations where you got negative comments from the clients. If you still don't think you are at fault, I think you most likely need to find another company because I fear you will not learn from your mistakes as you are not taking ownership of them.

I cannot afford another basic mistake like missing backups with another client, and I cannot have a client tell me that you are not giving good support to them. Those are two things that neither Sunny nor David have had. Hamid has had that issue with MKC, and we move him off of direct client interactions. The same I am doing with you by putting Sunny as primary.

I give all employees the chance to succeed and even fail once or twice but at some point, either the employee learns from the mistakes or has to find a new place to work.

Thanks,



Ravi Jain CISSP

Technijian – USA

Chief Executive Officer

18 Technology Dr. Ste. 141

Irvine, CA 92618

[Book time with Ravi Jain: General Meeting](#)

T: 949.379.8499 x201

F: 949.502.0069

C: 714.402.3164

T: 949.379.8501 (support line)



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From: Kraig Stickel <kstickel@technijian.com>
Sent: Thursday, May 16, 2024 8:28 PM
To: Ravi Jain <RJain@technijian.com>
Subject: Disciplinary Action Notice



Internal (kstickel@technijian.com)



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Ravi,

I have read your Disciplinary Action Notice; however, it does not, as it states, allow for an attachment of my written statement confirming the report or to provide additional information. I am not in agreement with the conclusions being drawn in this report as they do not appear in my opinion to be a complete representation of all of the circumstances. I sincerely understand the depth of these concerns, and want to do all I can to prevent the loss of any of our clients. I am willing to accept fault for any mistakes, but also don't feel I was the primary reason for any of these losses, even though I do agree that I can improve in the area of communication. For these reasons, I am unable to sign the Docusign at this time. I am requesting further communication and the opportunity to gain a better understanding on this matter so that future such concerns can be avoided.

While there are multiple reasons a client may choose to leave, I would like to grow within this company and strive for the retention of all clients when possible. This is not to say that I do not value each of our clients; however, I am concerned that I am being admonished for losing a significantly smaller client while we are simultaneously losing our biggest client and yet, the team member who was the lead for that client has been promoted. Also, with the major financial loss of our biggest client, additional team members have been hired on. Can you please share with me your thoughts as to my current and future role as a team member with Technijian?

Thank you.

Kraig Stickel

Client Support Engineer

Technician – USA

18 Technology Dr. Ste. 141

Irvine, CA 92618

[Book time with Kraig Stickel](#)

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C: (714) 403-7015

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